



Delaware County Regional Wastewater District Public Hearing

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=flEedFTYFGg
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Municipal Meeting Report: Delaware County District Authority / Board of Commissioners

Meeting Date: January 3, 2017

Time: 2:30 PM

Document Type: Comprehensive Community Meeting Summary

1. Pre-Meeting Hearings & Committee Work Sessions

- **Session Type & Topic:** Statutory Public Hearing regarding the rate change by the Delaware County Regional Wastewater Authority [00:00:11](#).
- **Summary of Discussion:** The Board of Commissioners convened a public hearing to review evidence and determine two main issues: (1) whether the Board of Trustees of the Regional Wastewater District followed proper statutory procedures in adopting their ordinance increasing sewer rates and charges, and (2) whether the increased rates are just and equitable according to Section 9 of the code. Testimony and legal exhibits were presented by District Attorney Mark Abril and district rate consultant Doug Baldassari (A.S. Umbrella), detailing purchase treatment cost increases passed down from the

Muncie Sanitary District (MSD), retroactive backbillings, historical rate trajectories, and potential alternative remedies including a proposed joint wastewater treatment facility.

2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** Called to order by the presiding officer at 2:30 PM on January 3rd, 2017 00:00:00, 00:00:11.
 - **Attendance:**
 - **Members Present:** Mr. Henry, Mr. Brough, Mr. King (*Note: Mr. Regan arrived slightly late*) 00:00:45<U+2013>00:00:59.
 - **Members Absent:** None (noted as arriving late).
 - **Presiding Officer:** Not explicitly named in opening roll call, but led by the Board President/Commissioners.
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3. Preliminary & Procedural Business

- **Ceremonial Openings:** The meeting opened with the Pledge of Allegiance led by attendees 00:01:18.
 - **Approval of Minutes:** (*Not explicitly detailed in the transcript text beyond normal preliminary tracking*).
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4. Substantive Business & Board Action

00:03:03 Evidentiary Presentation: Regional Wastewater District Rate Increase & Muncie Sanitary District Billing Dispute

- **Sponsor / Presenter:** Mark Abril, Attorney for Delaware County Regional Wastewater District, and Doug Baldassari, Rate Consultant (A.S. Umbrella).
- **Deliberation Summary:**
 - Mark Abril introduced six exhibits (00:03:40<U+2013>00:11:45), including Muncie Sanitary District (MSD) rate advertisements, MSD rate studies, legal notices, the adopted rate ordinance, and board meeting minutes.
 - Counsel explained that MSD enacted steep rate hikes (raising treatment costs from \$4.02 to \$4.54, then to \$5.26 and \$5.37 per 100 cubic feet), heavily backbilled the district to January, and factored non-treatment infrastructure costs (such as local levee repairs and stormwater projects within Muncie) into regional district customer bills.
 - Doug Baldassari testified that despite implementing tracker rate adjustments, the district remains short roughly \$94,000 due to retroactive billing mismatches and

rising wholesale treatment costs, which translate to over \$300,000 per year in additional expenses paid to MSD.

- Lengthy board questioning and community dialogue ensued regarding the breakdown of customer bills (e.g., \$102.69 monthly bills consisting of bond debt service, maintenance/wages, and Muncie treatment tracking fees) and the viability of constructing a \$35 million joint wastewater treatment plant near Eaton with Liberty Regional Waste District to break away from MSD.
 - **Item-Specific Public Input:** Extensive public testimony was heard from neighborhood representatives and residents regarding billing transparency, lack of advance notice, and dissatisfaction with MSD.
 - **Action & Vote Disposition:** The public hearing was formally closed by roll call vote following the public comment period [01:52:57](#). *(Note: The final decision on the rate ordinance was taken under advisement to be issued by February).*
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5. Open Public Comment / Citizen Forum

- [00:58:54](#) **Mitch Isaacs (8501 North Yellowstone Drive, Country Village/Creekwood Neighborhood Association):** Spoke on behalf of neighborhood research into the rate hikes. Notified the board that residents received bills after the fact without adequate notice. Shared an itemized breakdown of the \$102.69 bill (\$17.40 maintenance, \$35.27 bond for construction ending in 2025, \$49.97 Muncie tracking charge). Questioned the viability and financial projections of building another treatment plant via a new bond, and asked the board to explore becoming direct customers of the Muncie Sanitary District or finding legal ways to reduce rates.
- [01:05:54](#) **Russ Strom (8500 North Williams Road):** Unincorporated resident on a septic system with two manholes on his property that have not been inspected in 2.5 years. Questioned why unincorporated residents cannot simply disconnect from the district sewer system and return to septic tanks to escape infighting and high fees.
- [01:16:35](#) **Mike Stoltz (1801 East Delta Drive):** Expressed deep concern over lack of control and transparent representation regarding utility rates. Noted that a static \$100+ bill or even a slight reduction to \$95 is unacceptable, but emphasized that dropping \$35 when bonds mature in 2025 would be a welcome relief.
- [01:19:45](#) **[Unnamed Resident / Former Board Member]:** Shared historical context from 11 years on the board, 4 years as a county commissioner, and 7 years on the regional wastewater board. Discussed past construction errors ("metric pipe fiasco") and noted impending movements by Yorktown and Daleville to take over local facilities.
- [01:43:52](#) **Shane Elam (3009 West County Road 450 North):** Highlighted the disproportionate burden of a 31% rate increase on fixed-income and retired residents. Expressed frustration over short notice and the inability to sell homes due to sewer encumbrances.

- **01:14:12 Cindy Turner (1105 East Cooper Road, Royerton Heights):** Spoke about Royerton residents paying the same flat rate regardless of home size or property value. Warned against county decline mirroring Muncie's economic struggles and criticized newspaper-only legal notices as ineffective.
 - **01:32:18 Bob Wilson (3800 East Cabinets, 350 North):** Questioned the disparity between city versus county treatment rates per 100 cubic feet and inquired about equivalent dwelling unit (EDU) calculations.
 - **01:24:34 Pat Cook (30209 East Kindle Line):** Criticized the unelected nature of the historical board and the disastrous impact of high sewer costs on home values and community growth. Compared local costs unfavorably to Carmel, Indiana utility rates, and questioned the financial stability and transparency of both the district and MSD.
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6. Administrative Updates & Adjournment

- **Staff / Board Announcements:**
 - Legal counsel Mark Abril noted that proposed contract drafts, amendments, and legal responses between the district and Muncie Sanitary have been provided to the board's counsel **01:31:41**.
 - The board noted that the rate decision under advisement will be issued either by the next meeting or no later than February **00:02:55**.
 - **Adjournment:**
 - A motion to close the public hearing was made by Lou, seconded, and carried by voice/roll call vote (Mr. Henry, Mr. King, Mr. Regan) **01:52:57**.
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